

Neha Sharma & Others vs Ms. Rajani Devi & Another on 27 August, 2019

Author: Sandeep Sharma

Bench: Sandeep Sharma

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IN THE HIGH COURT OF HIMACHAL
SHIMLA

PRADESH,

Cr.MMO No. 52 of 2019

Date of Decision: 27.8.2019

Neha Sharma & others

.....Petition

Versus

Ms. Rajani Devi & another

.....Respondents

Coram

Hon'ble Mr. Justice Sandeep Sharma, Judge.

Whether approved for reporting? Yes.

For the Petitioners:

Mr. C.N.Singh, Advocate.

For the Respondents: Mr. Aman Sood, Advocate, for respondents
No.1 and 2.

Sandeep Sharma, J. (Oral)

By way of instant petition filed under Section 482 of the Code of Criminal Procedure read with Section 227 of the Constitution of India, prayer has been made on behalf of the petitioners for quashing of complaint dated 13.10.2015 filed under Section 12 of the Protection of Women under Domestic Violence Act, 2005 (Annexure P□) as well as consequent proceedings 1Whether reporters of the Local papers are allowed to see the judgment?

pending in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, Himachal Pradesh.

2. Briefly stated facts, as emerge from the record are that marriage inter se respondent No.1, Ms. Rajani Devi and respondent No.3, Sh. Rahul Sharma, was solemnized on 13 th May, 2013 as per Hindu customs and rights, however, since they were unable to get along for considerable time, respondent No.1 started residing separately w.e.f. 12th November, 2014. Subsequently, respondent No.1 filed a complaint under Section 12 of the Protection of Women under Domestic Violence Act, 2005 (for short 'Act') against the petitioners as well as respondent No.3, who happened to be her in□ laws and husband respectively. Though, complaint, as referred hereinabove, is pending adjudication in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P., but vide order dated 24.5.2016 (Annexure P□3) learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P., granted interim maintenance of Rs.7000/□per month in favour of respondents No.1 and 2.

3. Respondent No.3, being aggrieved and dissatisfied with the aforesaid order dated 24.5.2016 (Annexure P□3), preferred .

Criminal Revision No.22□Cr.R/10 of 2016 in the Court of learned Sessions Judge, Sirmaur, District Nahan, H.P., who vide judgment dated 29.4.2017 (Annexure P□4), dismissed the revision petition, as a consequence of which, order passed by learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P, awarding the interim maintenance, came to be upheld.

4. Respondent No.3, being aggrieved and dissatisfied the aforesaid judgment dated 29.4.2017 (Annexure P□4), preferred Cr.MMO No.242 of 2017 before this Court, wherein respondent No.1 and respondent No.3 agreed to settle their dispute amicably inter se them, but it appears that compromise arrived inter se parties before this Court could not be given effect to because of adamant attitude of the parties. In view of the subsequent developments, respondent No.1 got the complaint filed by her under Section 12 of the Act revived as per the liberty granted to her by this Court while disposing of the Cr.MMO No.242 of 2017 vide judgment dated 25.8.2017. In the

aforesaid background, petitioners have approached this Court, seeking therein quashment of complaint as well as consequent proceedings pending .

in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P.

5. On 17.6.2019, this Court having noticed the controversy inter se parties, deemed it fit to summon both the parties to the Court, so that possibility, if any, of amicable settlement inter se them, is explored. On 8.7.2019, respondent No.1 expressed her unwillingness/inability to reside with her husband respondent No.3 and stated before this Court that she is ready for one time settlement. This Court on the request of learned counsel representing the parties, adjourned the matter for some time on 8.7.2019, enabling the parties to settle the terms and conditions of amicable settlement. This Court was informed that as per agreed terms, respondent No.3 would pay lump sum amount of Rs. 2.50 lac to respondent No.1, Ms. Rajni Devi, who in turn would deposit the same in the name of her minor daughter, namely Ananya (Respondent No.2).

6. On 19.8.2019, petitioners who had come present in Court also brought the FDR, amounting to Rs. 2.50 lac made in the .

name of respondent No.2, but since respondent No.1 was not present on that day, matter could not proceed further. Today, respondent No.1 has come present in Court. Both respondents No.1 and 3 have stated on oath that they of their own volition and without there being any external pressure have entered into the compromise, whereby they agreed to withdraw all the cases initiated/lodged at their behest against each other. They further stated that FDR, amounting to Rs. 2.50 lac made in the name of respondent No.2 has been handed over to respondent No.1 and as such, prayer made in the petition for quashing of complaint as well as consequent proceedings pending adjudication in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P., may be accepted. They further stated that both the parties have jointly moved a petition under Section 13B of the Hindu Marriage Act, praying therein for grant of decree of divorce by way of mutual consent. Statements made by respondents No.1 and 3 are taken on record.

7. Having heard learned counsel representing the parties and perused the material available on record, especially statement .

made by respondent No.1 in this Court, this Court sees no impediment in accepting the prayer made in the petition for quashment of complaint as well as consequent proceedings pending in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P.

8. Since the petition has been filed under Section 482 Cr.P.C, this Court deems it fit to consider the present petition in the light of the judgment passed by Hon'ble Apex Court in Narinder Singh and others versus State of Punjab and another (2014)6 Supreme Court Cases 466, whereby Hon'ble Apex Court has formulated guidelines for accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings. Perusal of judgment referred above clearly depicts that in para 29.1, Hon'ble Apex Court has returned the findings that power conferred under Section 482 of the Code is to be distinguished from the power

which lies in the Court to compound the offences under section 320 of the Code. No doubt, under section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those .

cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be as under: □

29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:

29.1 Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.

29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:

(i) ends of justice, or

(ii) to prevent abuse of the process of any Court.

While exercising the power under Section 482 Cr.P.C the High Court is to form an opinion on either of the aforesaid two objectives.

29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for offences alleged to have been committed under special statute like the .

Prevention of Corruption Act or the offences committed by Public Servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other, those criminal cases having overwhelmingly and pre-dominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases.

29.6. Offences under Section 307 IPC would fall in the category of heinous and serious offences and therefore is to be generally treated as crime against the society and not against the individual alone. However, the High Court would not rest its decision merely because there is a mention of Section 307 IPC in the FIR or the charge is framed under this provision. It would be open to the High Court to examine as to whether incorporation of Section 307 IPC is there for the sake of it or the prosecution has collected sufficient evidence, which if proved, would lead to proving the charge under Section 307 IPC. For this purpose, it would be open to the High Court to go by the nature of injury sustained, whether such injury is inflicted on the vital/delegate parts of the body, nature of weapons used etc. Medical report in respect of injuries suffered by the victim can generally be the guiding factor. On the basis of this prima facie analysis, the High Court can examine as to whether there is a strong possibility of conviction or the chances of conviction are remote and bleak. In the former case it can refuse to accept the settlement and quash the criminal proceedings whereas in the later case it would be permissible for the High Court to accept the plea compounding the offence based on complete settlement between the parties. At this stage, the Court can also be swayed by the fact that the settlement between the parties .

is going to result in harmony between them which may improve their future relationship.

29.7. While deciding whether to exercise its power under Section 482 of the Code or not, timings of settlement play a crucial role. Those cases where the settlement is arrived at immediately after the alleged commission of offence and the matter is still under investigation, the High Court may be liberal in accepting the settlement to quash the criminal proceedings/investigation. It is because of the reason that at this stage the investigation is still on and even the charge sheet has not been filed. Likewise, those cases where the charge is framed but the evidence is yet to start or the evidence is still at infancy stage, the High Court can show benevolence in exercising its powers favourably, but after prima facie assessment of the circumstances/material mentioned above. On the other hand, where the prosecution evidence is almost complete or after the conclusion of the evidence the matter is at the stage of argument, normally the High Court should refrain from exercising its power under Section 482 of the Code, as in such cases the trial court would be in a position to decide the case finally on merits and to come a conclusion as to whether the offence under Section 307 IPC is committed or not. Similarly, in those cases where the conviction is already recorded by the trial court and the matter is at the appellate stage before the High Court, mere compromise between the parties would not be a ground to accept the same resulting in acquittal of the offender who has already been convicted by the trial court. Here charge is proved under Section 307 IPC and conviction is already recorded of a heinous crime and, therefore, there is no question of sparing a convict found guilty of such a crime".

9. The Hon'ble Apex Court in case Gian Singh v.

State of Punjab and anr. (2012) 10 SCC 303 has held that power of the High Court in quashing of the criminal proceedings or FIR or complaint in exercise of its inherent power is distinct .

and different from the power of a Criminal Court for compounding offences under Section 320 Cr.PC. Even in the judgment passed in Narinder Singh's case, the Hon'ble Apex Court has held that while exercising inherent power under Section 482 Cr.PC the Court must have due regard to the nature and gravity of the crime and its social impact and it cautioned the Courts not to exercise the power for quashing proceedings in heinous and serious offences of mental depravity, murder, rape, dacoity etc. However subsequently, the Hon'ble Apex Court in Dimpey Gujral and Ors. vs. Union Territory through Administrator, UT, Chandigarh and Ors. (2013) 11 SCC 497 has also held as under: "7. In certain decisions of this Court in view of the settlement arrived at by the parties, this Court quashed the FIRs though some of the offences were non-compoundable. A two Judges' Bench of this court doubted the correctness of those decisions. Learned Judges felt that in those decisions, this court had permitted compounding of non-compoundable offences. The said issue was, therefore, referred to a larger bench. The larger Bench in Gian Singh v. State of Punjab (2012) 10 SCC 303 considered the relevant provisions of the Code and the judgments of this court and concluded as under:

(SCC pp. 342-43, para 61)

61. The position that emerges from the above discussion can be summarised thus: the power of .

the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320 of the Code. Inherent power is of wide plenitude with no statutory limitation but it has to be exercised in accord with the guideline engrafted in such power viz; (i) to secure the ends of justice or (ii) to prevent abuse of the process of any Court. In what cases power to quash the criminal proceeding or complaint or F.I.R may be exercised where the offender and victim have settled their dispute would depend on the facts and circumstances of each case and no category can be prescribed. However, before exercise of such power, the High Court must have due regard to the nature and gravity of the crime. Heinous and se serious impact on society. Similarly, any compromise between the victim and offender in relation to the offences under special statutes like Prevention of Corruption Act or the offences committed by public servants while working in that capacity etc; cannot provide for any basis for quashing criminal proceedings involving such offences. But the criminal cases having overwhelmingly and pre-dominantly civil flavour stand on different footing for the purposes of quashing, particularly the offences arising from commercial, financial, mercantile, civil, partnership or such like transactions or the offences arising out of matrimony relating to dowry, etc. or the family disputes where the wrong is basically private or personal in nature and the parties have resolved their entire dispute. In this category of cases, High Court may quash criminal proceedings if in its view, because of the compromise between the offender and victim, the possibility of conviction is remote and bleak and continuation of criminal case would put accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal case despite full and complete settlement and compromise with the .

victim. In other words, the High Court must consider whether it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and wrongdoer and whether to secure the ends of justice, it is appropriate that criminal case is put to an end and if the answer to the above question(s) is in affirmative, the High Court shall be well within its jurisdiction to quash the criminal proceeding." (emphasis supplied)

8. In the light of the above observations of this court in Gian Singh, we feel that this is a case where the continuation of criminal proceedings would tantamount to abuse of process of law because the alleged offences are not heinous offences showing extreme depravity nor are they against the society. They are offences of a personal nature and burying them would bring about peace and amity between the two sides. In the circumstances of the case, FIR No. 163 dated 26.10.2006 registered under Section 147, 148, 149, 323, 307, 452 and 506 of the IPC at Police Station Sector 3, Chandigarh and all consequential proceedings arising there from including the final report presented under Section 173 of the Code and charges framed by the trial Court are hereby quashed."

10. Recently Hon'ble Apex Court in its latest judgment dated 4th October, 2017, titled as Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur and others versus State of Gujarat and Another, passed in Criminal Appeal No.1723 of 2017 arising out of SLP(Crl) No.9549 of 2016, reiterated the principles/ parameters laid down in Narinder Singh's case supra for accepting the settlement and quashing the proceedings.

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It would be profitable to reproduce para No. 13 to 15 of the judgment herein:

"13. The same principle was followed in Central Bureau of Investigation v. Maninder Singh (2016)1 SCC 389 by a bench of two learned Judges of this Court. In that case, the High Court had, in the exercise of its inherent power under Section 482 quashed proceedings under Sections 420, 467, 468 and 471 read with Section 120B of the Penal Code. While allowing the appeal filed by the Central Bureau of Investigation Mr Justice Dipak Misra (as the learned Chief Justice then was) observed that the case involved allegations of forgery of documents to embezzle the funds of the bank. In such a situation, the fact that the dispute had been settled with the bank would not justify a recourse to the power under Section 482:

"...In economic offences Court must not only keep in view that money has been paid to the bank which has been defrauded but also the society at large. It is not a case of simple assault or a theft of a trivial amount; but the offence with which we are concerned is well planned and was committed with a deliberate design with an eye of personal profit regardless of consequence to the society at large. To quash the proceeding merely on the ground that the accused has settled the amount with the bank would be a misplaced sympathy. If the prosecution against the economic offenders are not allowed to continue, the entire community is aggrieved."

14. In a subsequent decision in *State of Tamil Nadu v R Vasanthi Stanley* (2016) 1 SCC 376, the court rejected the submission that the first respondent was a woman "who was following the command of her husband" and had signed certain documents without being aware of the nature of the fraud which was being perpetrated on the bank. Rejecting the submission, this Court held that:

"... Lack of awareness, knowledge or intent is neither to be considered nor accepted in economic offences. The submission assiduously presented on gender leaves us unimpressed. An offence under the criminal law is an offence and it does not depend upon the gender of an accused. True it is, there are certain provisions in Code of Criminal Procedure relating to exercise of jurisdiction Under Section 437, etc. therein but that altogether pertains to a different sphere. A person committing a murder or getting involved in a financial scam or forgery of documents, cannot claim discharge or acquittal on the ground of her gender as that is neither constitutionally nor statutorily a valid argument. The offence is gender neutral in this case. We say no more on this score..."

"...A grave criminal offence or serious economic offence or for that matter the offence that has the potentiality to create a dent in the financial health of the institutions, is not to be quashed on the ground that there is delay in trial or the principle that when the matter has been settled it should be quashed to avoid the load on the system..."

15. The broad principles which emerge from the precedents on the subject may be summarized in the following propositions:

(i) Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognizes and preserves powers which inhere in the High Court;

(ii) The invocation of the jurisdiction of the High Court to quash a First Information Report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973.

The power to quash under Section 482 is attracted even .

if the offence is non-compoundable.

(iii) In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of

justice would justify the exercise of the inherent power;

(iv) While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised; (i) to secure the ends of justice or (ii) to prevent an abuse of the process of any court;

(v) The decision as to whether a complaint or First Information Report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated;

(vi) In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been inherently settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences;

(vii) As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing in so far as the exercise of the inherent power to quash is concerned;

(viii) Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute;

(ix) In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the .

disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and

(x) There is yet an exception to the principle set out in propositions (viii) and (ix) above. Economic offences involving the financial and economic well-being of the state have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance.

11. It is quite apparent from the aforesaid exposition of law that High Court has inherent power to quash criminal proceedings even in those cases which are not compoundable, but such power is to be exercised sparingly and with great caution. In the judgments, referred hereinabove, Hon'ble Apex Court has categorically held that Court while exercising inherent power under Section 482 Cr.P.C. must have due regard to the nature and gravity of offence sought to be compounded. Hon'ble Apex Court has though held that heinous and serious offences of mental depravity, murder, rape, dacoity

etc. cannot appropriately be quashed though the victim or the family of the victim have settled the dispute, but it has also observed that while exercising its powers, High Court is to examine as to whether the .

possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases. Hon'ble Apex Court has further held that Court while exercising power under Section 482 Cr.P.C can also be swayed by the fact that settlement between the parties is going to result in harmony between them which may improve their future relationship. Hon'ble Apex Court in its judgment rendered in State of Tamil Nadu supra, has reiterated that Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice and has held that the power to quash under Section 482 is attracted even if the offence is non-compoundable. In the aforesaid judgment Hon'ble Apex Court has held that while forming an opinion whether a criminal proceedings or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.

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12. Consequently, in view of the averments contained in the petition as well as the submissions having been made by the learned counsel for the parties that the matter has been compromised, and keeping in mind the well settled proposition of law as well as the compromise being genuine, this Court has no inhibition in accepting the compromise and quashing the complaint as well as consequent proceedings pending in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P.

13. Accordingly, in view of the detailed discussion made hereinabove as well as law laid down by the Hon'ble Apex Court, complaint dated 13.10.2015 (Annexure P□) as well as consequent proceedings pending adjudication in the Court of learned Chief Judicial Magistrate, Sirmaur, District Nahan, H.P., are quashed and set aside.

14. As far as joint petition filed under Section 13□B of the Hindu Marriage Act, praying therein for grant of decree of divorce by way of mutual consent, this Court direct the Registry to register the same and thereafter transfer the same to the learned District .

Judge (Family Court) Shimla, today itself, so that necessary action on the same is taken at the earliest. Learned District Judge (Family Court) Shimla, H.P, is directed to take note of aforesaid petition filed under Section 13□B of the Hindu Marriage Act filed by respondent No.1 and respondent No.3 and record their statements today itself , so that parties are saved from the ordeal of coming to the Court again and again.

15. Careful perusal of the averments contained in the petition filed under Section 13□B of the Hindu Marriage Act as well as statements made before this Court clearly suggest that there is no possibility of rapprochement or conciliation between respondent No.1 and respondent No.2 and as such, prayer

made on their behalf for divorce by way of mutual consent deserve to be considered. Since parties are living separately for the last so many years and they have been litigating with each other, statutory period of six months as envisaged under Section 13B of the Act for grant of divorce by way of mutual consent can be waived, especially when there is no possibility of rapprochement of the parties and marriage has broken beyond repair. Learned District .

Judge (Family Court) Shimla, while considering the aforesaid aspect of the matter may also take note of the judgment rendered by this Court in case titled Bharti Kapoor versus Des Raj, CMPMO No.271 of 2017, decided on 31.10.2018 as well as judgments rendered by Hon'ble Apex Court in Veena Vs. State (Government of NCT of Delhi) and another, (2011)14 SCC 614, Priyanka Khanna v. Amit Khanna (2011) 15 SCC 612, Civil Appeal No.11158 of 2017 (arising out of Special Leave Petition (Civil) No.20184 of 2017) titled as Amardeep Singh Vs. Harveen Kaur, decided on 12.9.2017.

16. Learned counsel representing the parties undertake to cause presence of respondent No.1 and 3 before the learned District Judge (Family Court)Shimla, H.P., today at 2:00 PM, enabling him to do the needful in terms of the instant judgment passed by this Court.

17. Registry is directed to ensure that copy of the petition filed under Section 13B of the Hindu Marriage Act alongwith instant judgment are sent to the learned District Judge(Family Court)Shimla, H.P., immediately, preferably on or .

before 2:00 PM, enabling him to do the needful in terms of the direction contained in the instant judgment.

The present petition is allowed in the aforesaid terms.

Pending application(s), if any, also stands disposed of.

Authenticated copy

27th August, 2019

(shankar)

(Sandeep Sharma),

Judge .